

NEWSLETTER N. 526 of August 9, 2024

Oncological Oblivion, from the Privacy Authority useful information for citizens and businesses

Artificial Intelligence, Privacy Authority: yes to the bill but with due precautions

Car Rental: Privacy Authority fines a bank and a leasing company

Oncological Oblivion, from the Privacy Authority useful information for citizens and businesses

What is the right to oncological oblivion? Can banks, insurance companies, and employers request information about a concluded oncological condition from several years ago? Can a clinically cured person adopt a child? The FAQs published by the Data Protection Authority answer these and other questions. The aim is to prevent discrimination and protect the rights of individuals who have recovered from oncological diseases.

The document, in addition to providing clarifications to citizens on the right to oncological oblivion (Law No. 193/2023), offers useful guidance to all public and private employers, as well as banks, insurance companies, credit intermediaries, and financial institutions, so that they can correctly apply the new regulations.

The FAQs explain that the oversight of the correct application of the law is entrusted to the Privacy Authority, which may impose the sanctions provided for by the GDPR in the event of violations of data protection regulations.

Furthermore, it clarifies that the regulations prohibit banks, insurance companies, and all employers (both during the recruitment phase and throughout the employment relationship) from requesting information from users and employees about an oncological condition from which they were previously affected and whose treatment has concluded—without episodes of recurrence—for more than ten years (reduced to five if the individual was under 21 years old at the time the disease arose).

The law also establishes specific protections for couples applying for adoption at the Juvenile Court.

The Court, in selecting couples, cannot collect information about previous oncological conditions when more than ten years have passed since the conclusion of treatment for the condition—in the absence of recurrences or relapses—or more than five years if the condition manifested before the individual turned 21 years old.

This rule also applies in the case of the adoption of foreign minors.

The FAQs are available on the Privacy Authority's website www.gpdp.it.

Artificial Intelligence, Privacy Authority: yes to the bill but with due precautions

Further measures requested to protect personal data

The Privacy Authority has expressed a favorable opinion on the draft government bill on AI, which also includes legislative delegation for compliance with the EU Regulation on Artificial Intelligence (No. 2024/1689 – AI Act).

The draft law regulates research, experimentation, development, adoption, and application of Artificial Intelligence (AI) systems and models in various sectors of society (healthcare, justice, labor and professions, national security and defense, etc.).

In giving its favorable opinion on the text, the Authority has, however, requested the Government to integrate it in several parts to ensure greater protection of citizens' personal data.

In particular, the Authority has requested the introduction of a new article to clarify that the processing of personal data carried out through AI systems must comply with national and European privacy regulations. Furthermore, the text must be supplemented with a specific reference to adequate age verification systems capable of ensuring limitations or prohibitions on the use of AI systems by minors. In the case of the use of high-risk AI systems in the healthcare sector, the Authority has requested specific limitations on the use of data (storage, prohibition of transmission, transfer, or communication) and a preference for the use of synthetic or anonymous data.

It has also been requested to designate the Authority—as provided for in the AI Act—as the competent authority for high-risk Artificial Intelligence systems used, for example, for law enforcement activities, remote biometric identification, emotion recognition, border management, administration of justice, and democratic processes.

Car Rental: Privacy Authority fines a bank and a leasing company

Proceedings concluded with the payment of a reduced fine

The Privacy Authority has imposed a fine of one million euros on Credit Agricole Auto Bank for the unlawful processing of personal and income data of clients requesting financing for the long-term rental of a vehicle.

The bank accessed the Scipafi database (Centralized Fraud Prevention System) - also on behalf of the subsidiary Drivalia, a car leasing company - while being aware that it did not have the necessary authorization from the Ministry of Economy and Finance to carry out such accesses. Auto Bank justified the checks in order to prevent fraud, insolvencies, or other similar events. The Authority intervened following a complaint from a customer who reported the lack of response - from the Bank and Drivalia - to her request to know the reasons behind the denial of long-term car rental and the inclusion of her name on the list of bad payers. In response to the Authority's request for information, the Bank stated that the refusal of financing and the inclusion of the name on the "black list" were due to the negative outcome of the verification of the customer's income situation carried out in the Scipafi database. During the complex investigative activity, the Authority established that the Bank did not have the authorization from the Ministry of Economy and Finance to consult the Scipafi database on behalf of Drivalia. Furthermore, access had occurred without the prior acquisition of the customer's income tax return, a document essential for making the comparison with the information contained in Scipafi. In quantifying the amount of the sanction against CA Auto Bank, the Authority considered the nature and severity of the violation. The Authority also intervened against Drivalia, imposing a fine of 250,000 euros for the unlawful processing of personal data. The Authority established that the company was not authorized by the Ministry of Economy and Finance to acquire and process customer data present in Scipafi, even through CA Auto Bank. Moreover, the information provided to customers did not allow, at the time of the events, for the identification of the type and origin of the processed data, the databases consulted to verify the income positions of customers, and whether the accesses to the databases were made directly by Drivalia or through CA Auto Bank. Within the established deadline, CA Auto Bank and Drivalia took advantage of the possibility to extinguish the proceedings by paying a reduced amount equal to half of the imposed sanction.

THE AUTHORITY'S ACTIVITIES - FOR THOSE WHO WANT TO KNOW MORE

The most important interventions and measures recently adopted by the Authority

Turetta Case, Authority: excessive publication of intercepted conversations between father and son – Press Release of August 5, 2024

Anti-Papilloma vaccination for students: no to local initiatives that violate privacy regulations. The Authority warns the Puglia Region - Press Release of August 3, 2024

E-state in privacy. The Authority's tips on selfies and photos, smartphone and tablet protection, online shopping, use of apps, chats, and social networks while on vacation (and not only) - August 1, 2024

CrowdStrike: the privacy authority initiates investigations into the effects of the cyber blockade - Press Release of July 23, 2024

Smart cameras in Turin, the privacy authority opens an investigation. A request for information has been sent to the Municipality - Press Release of July 19, 2024

Report on activities 2023 - Summary for the press and documents – July 3, 2024

Covid-19: the privacy authority responds to the President of the Lombardy Region - Press Release of June 26, 2024

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The newsletter is available on the website www.gpdp.it